

Satish Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 July 2016 · WRIT - C No. - 32205 of 2016 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A consumer disputing electricity bills and a demand notice of Dakshinanchal Vidyut Vitran Nigam Ltd. was refused Article 226 interference and relegated to the statutory objection before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Satish Chandra petitioned the Allahabad High Court against electricity bills and a demand notice issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Shikohabad, District Firozabad. He disputed the correctness of those charges. The State and the distribution company appeared. After hearing counsel, the Division Bench considered whether the billing dispute should be entertained in writ jurisdiction or left to the Supply Code machinery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute; alternative remedy

HOLDING

A consumer disputing the correctness of electricity bills and a demand notice has a statutory alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by raising the dispute before the competent authority, and the High Court will not interfere under Article 226. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS AND DEMAND NOTICE

Merits of the billing dispute were not examined; petitioner was relegated to Clause 6.5. ¶ 2-4